

proprietary information. The Court does not agree with the overbreadth objection in this case. Plaintiff must begin by precisely identifying the information. If any information is confidential and cannot be produced even with a protective order, then Plaintiff must log it so that Defendant can review whether to seek further guidance from the Court.

Sanctions

Defendant also seeks sanctions in the amount of \$1,247.50. Plaintiff has amended responses and claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." Sanctions here are appropriate. Counsel's explanation for waiting until one week before the hearing to amend responses is not satisfying. It not only makes the moving party do extra work, it places an extra burden upon the Court (both the judge and staff). These were not substantial amendments and they did not require six months of wait. The Court will grant the request for sanctions payable to counsel for Defendant within 30 days of this order.

5. 9:00 AM CASE NUMBER: C25-00344
CASE NAME: CHERI MEZZAPELLE VS. CIVIC FELINE CLINIC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CIVIC FELINE CLINIC
TENTATIVE RULING:

This demurrer was rendered moot by Defendant's filing of an Answer.

6. 9:00 AM CASE NUMBER: C25-00344
CASE NAME: CHERI MEZZAPELLE VS. CIVIC FELINE CLINIC
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: CIVIC FELINE CLINIC
TENTATIVE RULING:

This Motion was rendered moot by Defendant's filing of an Answer.

7. 9:00 AM CASE NUMBER: C25-01410
CASE NAME: LUIS BARRERA VS. OSVALDO GARCIA
***HEARING ON MOTION IN RE: SANCTIONS**
FILED BY: GARCIA, OSVALDO
TENTATIVE RULING:

Plaintiff Luis Barrera brings this employment discrimination action against Timberworks Construction, Inc., Timberworks Construction, LLC, and Osvaldo Garcia. By this Motion, Defendants seeks sanctions pursuant to Code of Civil Procedure section 128.7, to dismiss the complaint and award attorneys' fees and costs to Defendants. It should be noted that Plaintiffs' counsel has a pending motion to be relieved as counsel, set for after this date.

Background

Prior to filing this lawsuit, Plaintiff engaged in negotiations with Defendants. Defendants aver that on multiple occasions, they transmitted to counsel a release from Plaintiff's workers compensation matter, purporting to release the claims at issue here. For that reason, they argue that Plaintiff's complaint is frivolous, as it is subject to a settlement agreement about which he knew prior to filing.

Plaintiff acknowledges the existence of this settlement agreement but argues that, for reasons the Court will not fully evaluate today, it does not extend to the matters in this case. A brief summary of their arguments is that the release is ambiguous as to discrimination claims, especially in the context of the Workers' Compensation process and paperwork, and that it lacked adequate consideration.

Analysis

California Code of Civil Procedure section 128.7 permits the imposition of sanctions where a pleading is filed for an improper purpose or is "indisputably without merit, either legally or factually." (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 168.) The statute applies an objective standard: "A claim is objectively unreasonable if any reasonable attorney would agree that [it] is totally and completely without merit." (*Id.*) This is not a situation where Defendants argue that there is no *factual* support for Plaintiff's claims; instead this motion involves an argument that he is barred from bringing the claims because of a release he signed.

Although Defendants did nominally place the scope of the release before the Court in the context of this motion, there is certainly insufficient information for the Court to determine—on this record and in this procedural posture—that there is no merit to Plaintiff's assessment that the release is capable of multiple interpretations. Plaintiff is not pretending the release does not exist; instead he is prepared to argue that it does not bar his claims. Regardless of the ultimate merits of that argument, it is not facially frivolous.

In Reply, Defendants question the veracity of Plaintiff's counsel's arguments about having analyzed the release for three reasons: (1) emails after the Safe Harbor notice was filed suggest that counsel was still confirming the document with the client; (2) counsel represented at the September 15, 2025 Case Management Conference that he had never seen the Release; and (3) the release was not pled in the complaint. The Court reads the email language as ambiguous and subject to interpretations consistent with a review of the release *language* but representing investigation on other aspects. The Court does not have a transcript of the Case Management Conference and does not know what exactly was said, but if Counsel represented that he had not seen it, that representation would be troubling. It is not, however, dispositive absent further discussion, which is missing. Finally, it is not required for a plaintiff to plead around the release.

For that reason, terminating sanctions are inappropriate. Defendants' Motion is **denied**.